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Title 17 —Commodity and Securities Exchanges

Chapter II —Securities and Exchange Commission

Part 229 —Standard Instructions for Filing Forms Under Securities Act of 1933, Securities

Exchange Act of 1934 and Energy Policy and Conservation Act of 1975—Regulation S-K

Subpart 229.1300 —Disclosure by Registrants Engaged in Mining Operations

Source: 83 FR 66448, Dec. 26, 2018, unless otherwise noted.

Authority: 15 U.S.C. 77e, 77f, 77g, 77h, 77j, 77k, 77s, 77z-2, 77z-3, 77aa(25), 77aa(26), 77ddd, 77eee, 77ggg, 77hhh, 77iii, 77jjj, 77nnn, 77sss, 78c, 78i, 78j, 78j-3, 78l, 78m, 78n, 78n-1, 78o, 78u-5, 78w, 78ll, 78 mm, 80a-8, 80a-9, 80a-20, 80a-29, 80a-30, 80a-31(c), 80a-37, 80a-38(a), 80a-39, 80b-11 and 7201 et seq.; 18 U.S.C. 1350; sec. 953(b), Pub. L. 111-203, 124 Stat. 1904 (2010); and sec. 102(c), Pub. L. 112-106, 126 Stat. 310 (2012).

Source: 47 FR 11401, Mar. 16, 1982, unless otherwise noted.

§ 229.1301 (Item 1301) General instructions.

- (a) As used in this section, the term *mining operations* includes operations on all mining properties that a registrant:
 - (1) Owns or in which it has, or it is probable that it will have, a direct or indirect economic interest;
 - (2) Operates, or it is probable that it will operate, under a lease or other legal agreement that grants the registrant ownership or similar rights that authorize it, as principal, to sell or otherwise dispose of the mineral; or
 - (3) Has, or it is probable that it will have, an associated royalty or similar right.
- (b) A registrant must provide the disclosure specified in this subpart if its mining operations are material to its business or financial condition.
- (c) When determining whether its mining operations are material, a registrant must:
 - (1) Consider both quantitative and qualitative factors, assessed in the context of the registrant's overall business and financial condition;
 - (2) Aggregate mining operations on all of its mining properties, regardless of the stage of the mining property, and size or type of commodity produced, including coal, metalliferous minerals, industrial materials, and mineral brines; and
 - (3) Include, for each property, as applicable, all related activities from exploration through extraction to the first point of material external sale, including processing, transportation, and warehousing.
- (d) Upon a determination that its mining operations are material, a registrant must provide summary disclosure concerning all of its mining activities, as specified in § 229.1303, as well as individual property disclosure concerning each of its mining properties that is material to its business or financial condition, as specified in § 229.1304. When providing either summary or individual property disclosure, the registrant:
 - (1) Should provide an appropriate glossary if the disclosure requires the use of technical terms relating to geology, mining or related matters, which cannot readily be found in conventional dictionaries;

- (2) Should not include detailed illustrations and technical reports, full feasibility studies or other highly technical data. The registrant shall, however, furnish such reports and other material supplementally to the staff upon request; and
- (3) Should use plain English principles, to the extent practicable, such as those provided in §§ 230.421 and 240.13a-20 of this chapter, to enhance the readability of the disclosure for investors.